



**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION (J&A)**

TO: Stephanie Fugate, Acting Agency Competition Advocate

FROM: Jean Kinyanjui, Contracting Officer's Representative

SUBJECT: Justification and Approval for Other than Full and Open Competition (J&A) to Increase Total Estimated Cost and Extend the Period of Performance for Contract 72066821C00004

1. **This document sets forth the facts and rationale justifying the use of other than full and open competition, in accordance with AIDAR 706.302-70(b)(5):**
USAID South Sudan Executive Office prepared this document for the Life Support Services contracting activity.

2. **The nature and/or description of the action being approved:**

This is a request to approve a sole source extension for up to one year from the current end date of May 31, 2025, to a revised end date of May 31, 2026, and an increase of the current Life Support Services contract Total Estimated Cost (TEC) from \$21,534,557 to \$26,800,932 for a total increase of \$5,266,375. While the total estimated costs for a one year extension is \$6,934,358.32 based on the Independent Cost Government Estimate ([IGCE](#)), estimates and projections in the [forward funding analysis](#), show that there will be a balance at the end of the current contract period May 31, 2025. RA International currently holds the contract for USAID South Sudan as the Alternate Service Provider (ASP) at the US Embassy in Juba.

Per the Agency Notice Follow-Up Instructions for Implementing Executive Order Reevaluating and Realigning United States Foreign Aid issued on January 24, the Operating Expenses (OE) and Capital Investment Fund (CIF) accounts are not part of the Foreign Assistance pause. This Activity and the modification therein are by OE accounts under International Cooperative Administrative Support Services (ICASS)/ASP and not affected by the above President's Executive Order. The fund cite for the available fiscal year 2025 funds, \$4,251,994 to be obligated initially is detailed below (see [Attachment 1](#) for fund details, and [Attachment 2](#) Guidance on the Obligation and Disbursement of Operating Expenses, Program Support, and Capital Investment Fund).

3. Description of the supplies or services required, including an estimated value:

The purpose of the LSS contract is to provide hospitality and housekeeping services, food service, cable TV services, facility maintenance services, and procurement of supplies, materials, and consumables necessary to perform the basic functions of the respective life support services to all U.S. Government (USG) personnel stationed in the U.S. Embassy in Juba. The contract addresses mission-essential sustenance, livelihood, and logistical services that are neither readily available or safe in the local economy nor available to the staff due to the USG's security posture. The current award expires on May 31, 2025, and the proposed extension would enable the continuation of the same services for up to one year for up to an additional cost of \$5,266,375.

4. Statutory authority permitting other than full and open competition:

AIDAR 706.302-70(b)(5) Impairment of Foreign Aid: "A specific contract for the continued provision of highly-specialized services when an award to another contractor would result in substantial additional costs to the Government or cause unacceptable delays."

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires the use of the authority cited:

The AIDAR exception (706.302-7(b)(5)) is used to request the extension of the RA International Life Support Services contract as it is, at this time, the only practicable source that can meet the Mission's requirements through the continuity of its services. For an urgent requirement such as this, in such a complex working environment, no other contractor could reasonably research and prepare an adequate proposal before the end of the current performance period, let alone provide the required services.

6. Description of the efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was publicized as required by FAR 5.2

The follow-on contract is in process. The draft scope of work, IGCE, and Section F - Deliveries or Performance have been completed and are awaiting approval. Due to the ongoing uncertainty of USAID's continued provision of ASP Services by the U.S. Agency for International Development (USAID) and possible transfer of service responsibilities to ICASS under the State Department, the process is on pause.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer has determined that the anticipated cost to the Government would be fair and reasonable, based on the current costs of the services, initiated budget costs based on the one year independent government cost estimate that was prepared based on a 6 month budget proposal submitted by RA International.

8. Description of the market research conducted and the results or a statement of the reasons market research was not conducted:

The market research applied in designing the scope is based on historical acquisition information from life support services provided for the mission, personnel knowledge in procuring supplies and services for this type of service, contact with the requestor, and other knowledgeable people in Government regarding the commercial nature of life support services requirements and standard practices in these areas of service provision.

9. Other facts supporting the use of other than full and open competition:

The following additional facts are provided to support the use of other than full and open competition in accordance with AIDAR 706.302-70(b)(5) Impairment of Foreign Aid.

(i) Impair a Program

The Life Support Services contract addresses mission-essential sustenance, livelihood, and logistical services that are not available with the minimum safety and reliability standards in the local economy, nor available to USG staff due to diplomatic security requirements and posture. Although a follow-on contract was in the planning stages, the process is on pause due to the ongoing uncertainty of USAID's future and potential plans to transfer ASP Services provided by USAID South Sudan to ICASS under the State Department. This has significantly impacted the procurement action lead time, and a harmful service gap will result if the current contract is not extended. As the ASP for the USG Mission in Juba, the lack of these basic services on the compound would significantly impact the morale and well-being of USG employees, as well as their ability to do their jobs, or risk closure of the Embassy entirely. Therefore, not continuing the Life Support Services would not only impair foreign aid but would discontinue it for all of the USG.

(ii) Specialized Services

This contract facilitates the critical operation of multiple USG compounds at post until the State Department can integrate all services under the ICASS framework. Implementation of the contract allows USAID/South Sudan to continue as the ASP for operations until that time. The logistical complexity of providing these services in an operating environment like South Sudan means that no other source could practically compete and offer the necessary services within the timeframe available. No other contractor would be able to mobilize and facilitate the potential transfer of services to ICASS. The extension will allow for adequate time for a decision on the current competitive procurement action in the planning stages and avoid the impairment of all Embassy Juba logistical and operational services provided by this contract.

10. Sources, if any, that expressed an interest, in writing, in the acquisition:

No sources have expressed an interest as the procurement process is still at the initial stages with no notice for expression of interest posted. The follow on procurement was listed on USAID's Business Forecast, but there have not been any inquiries since the Business Forecast went offline. The Mission is not allowed to post on SAM.gov due to the notice dated January 23, 2025 from the Bureau for Legislative Affairs to continue to cease public communications in accordance with the four Executive Orders that relate to USAID. While subsequent guidance from the Acting Administrator from January 31, 2025 (Attachment 2) states that OE funded activities are not part of the pause in foreign assistance, the notice also states, "OUs are reminded to exercise prudence and fiscal responsibility by only obligating and disbursing OE, A&O program support, and CIF that are necessary for current operations." Therefore, due to the operating environment and the uncertainty of the USG's operations in South Sudan, the Contracting Officer has determined that the only path forward is to extend the current contract and any contractor that expressed interest in the procurement would not be able to provide appropriate services to ensure the continuation of Embassy operations.

11. The actions the Agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

Once a decision on ASP Services and their integration under ICASS is made, the procurement process to include competition will resume either under the ASP or ICASS.

12. Technical or Requirements Personnel Certification:

In accordance with FAR 6.303, I hereby certify that the technical statements included above and which form a basis for the justification are complete and accurate.

Jean Kinyanjui Digitally signed by Jean Kinyanjui
Date: 2025.03.11 13:10:15 +02'00'

Jean Kinyanjui, Contracting Officer's Representative

13. Contracting Officer Certification:

In accordance with FAR 6.303, I hereby certify that the justification is accurate and complete to the best of my knowledge and belief.

Elizabeth Colarik Digitally signed by Elizabeth
Colarik
Date: 2025.03.11 13:15:07 +02'00'

Elizabeth Colarik, Contracting Officer

14. Agency Competition Advocate Approval:

In accordance with AIDAR 706.302-70(c)(5), I hereby approve this justification.

**Stephanie Elaine
Fugate**

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Elaine Fugate
Date: 2025.03.11 13:35:58 -04'00'

Stephanie Fugate, Acting Agency Competition Advocate